

submitted no opposition to Defendant’s discovery and sanctions motions, including the instant motion for terminating sanctions. Therefore, there is nothing in the record to suggest that any lesser remedy short of dismissal would change Plaintiff’s conduct. (See *Del Junco v. Hufnagel* (2007) 150 Cal.App.4th 789, 799-800 [holding that terminating sanctions were warranted when it became clear that the plaintiff had no intention of answering discovery or complying with court orders and had shown no interest in taking part in the case].)

Based on the foregoing, the Court finds that terminating sanctions are warranted. Accordingly, Defendant’s motion is GRANTED.

.....

Blue Sky Utility LLC et al v. Bright Power, Inc

24CV001768

DEMURRER TO CROSS-COMPLAINT

TENTATIVE RULING: The demurrer is SUSTAINED. Bright Power, Inc. is granted 10 Court days’ leave to amend the Cross-Complaint, limited however, to allegations relevant to causes of action sounding in fraudulent misrepresentation and/or fraudulent concealment.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Cross-Defendants Blue Sky Utility LLC, Blue Sky Utility 2021 IV LLC, Blue Sky Utility Holding LLC, Blue Sky Utility 2021 VII LLC, Blue Sky Utility 2021 XIII LLC, Blue Sky Utility 2021 XII LLC, Blue Sky Utility 2022 I LLC, and Blue Sky Utility 2022 II LLC (collectively Blue Sky) demur, pursuant to Code of Civil Procedure 430.10, subdivision (e), to the fourteenth and fifteenth causes of action asserted against them through the Cross-Complaint of Bright Power, Inc. (Bright Power) on grounds that the Cross-Complaint fails to allege facts sufficient to state either cause of action.

Each of the first thirteen causes of action (including two distinct causes of action labelled “Eleventh Cause of Action”) assert claims for breach of contract; each cause of action based on a unique contract. The “Fourteenth Cause of Action” purports to state a claim for fraudulent inducement (see *id.* at 22:6, *et seq.*) and the “Fifteenth Cause of Action” purports to state a claim for fraudulent concealment (see *id.* at 24:8, *et seq.*).

A complaint must contain “facts constituting the cause of action.” (Code Civ. Proc., § 425.10, subd. (a)(1).) “The party against whom a complaint or cross-complaint has been filed may object, by demurrer . . . to the pleading on . . . grounds [that] . . . (e) The pleading does not

state facts sufficient to constitute a cause of action . . . [and/or] . . . (f) The pleading is uncertain.” (Code Civ. Proc., § 430.10.)

A demurrer on grounds that a plaintiff has failed to state a claim is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Such demurrer “‘does not admit . . . facts impossible in law, or allegations contrary to facts of which a court may take judicial knowledge.’ [Citation.]” (*Kenneth Mebane Ranches v. Superior Court* (1992) 10 Cal.App.4th 276, 291-292.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code Civ. Proc., § 430.30, subd. (a).) Because, “[a] demurrer tests only the legal sufficiency of the pleading...the question of plaintiff’s ability to prove the[] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

In order to state a claim sounding in fraud, a plaintiff is required to plead “(a) misrepresentation (false representation, concealment or nondisclosure); (b) knowledge of falsity (or “scienter”); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (*Phillipson & Simon v. Gulsvig* (2007) 154 Cal.App.4th 347, 363.) . In order to be actionable, the misrepresentation must either be made to the plaintiff (who must then rely upon the misrepresentation) or to another or others who the defendant intended or reasonably expected would repeat it to the plaintiff. (See, e.g., CACI Nos. 1900 and 1906.) “A fraudulent state of mind includes not only knowledge of falsity of the misrepresentation but also an “‘intent to ... induce reliance’ on it.” [Citation.]” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 976.)

California’s fraudulent concealment statute provides that “[o]ne who willfully deceives another with intent to induce him to alter his position to his injury or risk, is liable for any damage which he thereby suffers.” (Civil Code § 1709.) For purposes of that section, a “deceit” includes, “[t]he suppression of a fact, by one who is bound to disclose it, or who gives information of other facts which are likely to mislead for want of communication of that fact.” (Civil Code § 1710, subd. (3).) “[T]he elements of a cause of action for fraud based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Jones v. ConocoPhillips Co., supra*, 198 Cal.App.4th at 1198.)

“In California, fraud must be pled specifically; general and conclusory allegations do not suffice. Thus the policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. This particularity requirement necessitates

pleading facts which show how, when, where, to whom, and by what means the representations were tendered. A plaintiff's burden in asserting a fraud claim against a corporate employer is even greater. In such a case, the plaintiff must allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Lazar v. Super. Ct.* (1996) 12 Cal.4th 631, 645. Internal quotes and citations omitted.) Concealment, as a species of fraud, must be pled with specificity. (See *Jones v. ConocoPhillips Co.*, *supra*, 198 Cal.App.4th at 1198.)

The Court finds that the allegations of the Cross-Complaint are insufficient to satisfy this heightened pleading standard as to either the purported cause of action for fraudulent misrepresentation or the purported cause of action for fraudulent concealment.

The Cross-Complaint alleges some fourteen separate contracts, each between Bright Power and one or more of eleven separate entity defendants. In this context, Bright Power fails to identify *which entity Defendant* is responsible for the alleged misrepresentations and/or concealment supporting its causes of action. Rather, each of the allegations supporting the two fraud causes of action speak of the “cross-defendants” as an undifferentiated group. (See, Cross-Complaint at ¶¶ 168-173, 175-176, 178-184, and 186-189.) These abstract allegations, in the context of the number of transactions and Defendants alleged in the preceding sections of the Cross-Complaint, are insufficient, even, to acquaint Defendants with the nature of the fraudulent claims being asserted. Moreover, there are no allegations of the “names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Lazar v. Super. Ct.*, *supra*, 12 Cal.4th at 645.)

Bright Power, through the Opposition argues that Paragraph 11 provides the specific allegations necessary to support each cause of action. Through that paragraph Bright Power alleges that “[i]t was agreed between the parties to each EPC Agreement that BSU would be responsible for approval and payment of BPI invoices associated with each project/contract and that BSU was the actual party to the contract with BSU, to wit, the “owner.” This fact was confirmed in writing on March 7, 2024 by Allon Raveh, CEO of Blue Sky to Clair Hobday, CEO of Bright Power.” Each of the eleven entity defendants named in the Cross-Complaint has the phrase “Blue Sky” in its name. The phrase “Blue Sky,” standing alone, however, is not defined in the Cross-Complaint as referring to any specific entity. It is therefore entirely unclear to the Court which entity-Defendant Allon Raveh is alleged to be the CEO of. Even if this were clear, while the allegation may be sufficient to show ratification on the part of that single entity-Defendant, it is not sufficient to support a claim for fraud against each of the Defendants.

Finally, Bright Power argues that the Cross-Complaint states a claim for promissory fraud and, therefore, the demurrer should be overruled. First, the instant demurrer is not directed at any claim for promissory fraud. Consequently, the question of whether the Cross-Complaint alleges facts sufficient to state such cause of action is not properly before the Court. Second, a claim for promissory fraud is subject to the same heightened pleading standard as other fraud-based claims. (See *Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1060.)

Based on the foregoing, the demurrer is SUSTAINED.

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The Court finds, from the nature of the claims and the arguments asserted, a reasonable possibility that Bright Power can amend to state one or more claims sounding in fraud. For this reason, the demurrer is SUSTAINED WITH LEAVE TO AMEND.

.....

****at 9:30 a.m.****

McGrew Behavior Intervention Services, Inc. v. Israel Delgado

25CV001274

ATTORNEYS FEES

TENTATIVE RULING: Mr. Delgado’s request for an award of attorneys’ fees is GRANTED IN PART. Mr. Delgado is awarded attorneys’ fees and in the amount of \$4,163.50.

On November 3, 2025, Defendant Israel Delgado specially moved for an order striking the Verified Complaint, as a strategic lawsuit against public policy (SLAPP) pursuant to Code of Civil Procedure section 425.16 (Section 425.16 or Anti-SLAPP Statute). Through the supporting memorandum filed in support of the Motion, Mr. Delgado “request[ed] reasonable fees upon prevailing.” (See Support Memo at 7:3-4.)

By Minute Order of July 30, 2026, the Court found that the Complaint was a SLAPP and ordered it stricken pursuant to Section 425.16. The Court continued the request for an award of attorneys’ fees to this date.

With exceptions having no apparent relevance here, “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs.” (Code Civ. Proc., § 425.16, subd. (c)(1) (Section 425.16).) “Thus, under Code of Civil Procedure section 425.16, subdivision (c), any SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees. The fee-shifting provision was apparently intended to discourage such strategic lawsuits against public participation by imposing the litigation costs on the party seeking to ‘chill the valid exercise of the constitutional rights of freedom of speech and petition for the redress of grievances.’ [Citation.]” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.)

The Court finds that Mr. Delgado is a prevailing defendant pursuant to Section 425.16, subdivision (c)(1). (See Minute Order of July 30, 2026.) The Court further finds that the hourly rate charged by counsel is consistent with those typically charged in the community for similar work. (See Declaration of Mohammed Y. Kashef at ¶ 9.) The Court finds that 10.8 hours is a reasonable amount of time required to review the Complaint in the action and prepare the instant Motion. (See *id.* at ¶ 4.) Moreover, the Court finds the \$60.00 filing fee and \$73.50 service fee are reasonable and appropriate. (See *id.* at ¶¶ 12 and 13.) However, the Court does not find the evidence related anticipated future costs sufficiently certain to meet Defendant’s burden of proof as to those fees. (See *id.* at ¶¶ 5-7.) Thus, the evidence before the Court supports an award of fees actually incurred in the amount of (\$375/hr x 10.8 hrs =) \$4,050 plus costs of (\$60.00 + \$73.50 =) \$113.50.